

IN THE MAGISTRATE COURT OF Fulton COUNTY, GEORGIA

Peach State Properties, LLC

, Plaintiff/Landlord,

vs.

John Doe

, Defendant/Tenant.

Case No.:

24D0012345

NOTICE OF AUTOMATIC STAY
DUE TO BANKRUPTCY FILING

TO (Landlord):

Peach State Properties, LLC

AND TO: The Court

FROM (Tenant):

John Doe

ADDRESS:

857 Peachtree Street NE, Atlanta, GA, 30309

PHONE:

(404) 555-0167

EMAIL:

john.doe.ga@example.com

PROPERTY:

857 Peachtree Street NE, Atlanta, GA, 30309

PLEASE TAKE NOTICE that the undersigned tenant, John Doe, has filed a voluntary petition for bankruptcy relief under Title 11 of the United States Code in the United States Bankruptcy Court.

1. BANKRUPTCY FILING INFORMATION

Debtor Name:

John Doe

Bankruptcy Court:

U.S. Bankruptcy Court, Northern District of Georgia

Case Number:

24-53412-pmb

Chapter:

7

Date of Filing:

2024-05-06

2. AUTOMATIC STAY IN EFFECT

Pursuant to 11 U.S.C. § 362(a), the filing of the bankruptcy petition operates as an automatic stay of any judicial, administrative, or other action or proceeding against the debtor or the debtor's property, including but not limited to the commencement or continuation of eviction proceedings, enforcement of judgments, and any act to obtain possession of property from the debtor.

The automatic stay took effect immediately upon the filing of the bankruptcy petition. This stay applies to all collection activities, including the eviction action concerning the property located at 857 Peachtree Street NE, Atlanta, GA, 30309.

3. EFFECT ON PENDING EVICTION PROCEEDINGS

Any eviction proceedings currently pending against John Doe for the above-referenced property are automatically stayed and must be immediately suspended. No further action may be taken to prosecute the eviction, obtain possession of the property, or otherwise proceed against the debtor or the property without first obtaining relief from the automatic stay from the United States Bankruptcy Court.

4. NOTICE TO LANDLORD

Peach State Properties, LLC, as landlord and creditor in this matter, is hereby notified of the bankruptcy filing and the automatic stay. Any willful violation of the automatic stay may result in sanctions, including damages and attorney's fees, pursuant to 11 U.S.C. § 362(k). The landlord is listed as a creditor in the bankruptcy schedules. All communications regarding this matter should be directed to:

Bankruptcy Attorney: David Counsel, Esq.

Phone: (404) 555-0128

Email: dcounsel@example.com

5. RELIEF FROM STAY

If the landlord or any other party wishes to proceed with the eviction or take any action against the debtor or the property, they must first file a motion for relief from the automatic stay in the United States Bankruptcy Court where the bankruptcy case is pending. No action may be taken in state court or otherwise until such relief is granted by the bankruptcy court.

6. NOTICE TO THE COURT

The Court is hereby notified that the defendant/tenant in this eviction action has filed for bankruptcy protection. All proceedings in this eviction matter are stayed by operation of federal law and should be suspended pending further order of the bankruptcy court or relief from the automatic stay.

I hereby certify that the information contained in this Notice is true and correct to the best of my knowledge and belief. I further certify that a bankruptcy petition has been filed in the United States Bankruptcy Court as indicated above, and that the automatic stay under 11 U.S.C. § 362 is currently in effect.

Dated: September 17, 2026

Name:

John Doe

Address:

857 Peachtree Street NE, Atlanta, GA, 30309

Phone:

(404) 555-0167

Email:

john.doe.ga@example.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Notice of Automatic Stay Due to Bankruptcy Filing was furnished to:

- Peach State Properties, LLC at 3344 Piedmont Road NE, Atlanta, GA 30305

☐

U.S. Mail

☐

Hand Delivery

☐

Certified Mail

☐

Email

- Clerk of Court

☐

U.S. Mail

☐

Hand Delivery

☐

Certified Mail

☐

Email

- Landlord's Attorney (if applicable)

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U.S. Mail

☐

Hand Delivery

☐

Certified Mail

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Email